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County: los-angeles

Division: Civil Law and Motion

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Case Number: 22STCV11381 Hearing Date: July 1, 2026 Dept: 11

Preliminary Approval of
Class Action Settlement

Department SSC-11

Roberts,
et al. v. Long Beach Community College District

Case No.: 22STCV11381

Hearing: July
1, 2026

TENTATIVE
RULING

Continue for counsel to address the
following:

1.
On
May 6, 2024, the Court (at that time, Hon. Stuart Rice) granted Plaintiffs' motion for class certification, certifying a class defined as "all persons employed by Long Beach Community College District as part-time hourly instructional faculty members at any time during the period from April 5, 2019 through final judgment." (Goldsmith Decl., ¶9, and Exhibit 5 thereto.) Notice was mailed in July 2024 to approximately 1,200 individuals. (Id. at ¶10.) Only two class members opted out. By the time of parties' mediation in

August 2025, the class size was estimated to be 1,456 individuals. (Ibid.) Why is it proper for Class members to have a second, settlement-stage opt-out opportunity? (See Settlement Agreement, ¶¶1.32, 1.33, 7.4.4, 7.5, et seq.)

2. Provide information regarding any fee splitting agreement and whether the client has given written approval. (Mark v. Spencer (2008) 166 Cal.App.4th 219; Rules Prof. Conduct, rule 1.5.1; Cal. Rules of Court, rule 3.769.)

3. The incentive awards herein seem excessive.

4. The Settlement and Notice contain footnote or endnote designations, but there do not seem to be footnotes/endnotes? For example, see Settlement Agreement, ¶1.11 and ¶8. Are there missing footnotes/endnotes?

BACKGROUND

This is a wage and hour class action. Plaintiffs are part-time hourly instructional faculty members employed by the District. On April 5, 2022, Plaintiffs commenced this Action by filing a Complaint alleging causes of action against the District for declaratory relief, violations of California minimum wage law, and penalties under the Labor Code Private Attorneys General Act.

The First Amended Complaint filed June 7, 2022, is the operative complaint in the Action (the “Operative Complaint”) and alleges that the District’s compensation structure for its part time hourly instructional faculty violates California minimum wage law by failing to provide any compensation for teaching-related work performed outside of classroom teaching hours.

Counsel represses that the parties engaged in investigation and discovery, which included written discovery by means of document requests and interrogatories; the depositions of six persons most qualified designated by the District, the named plaintiffs, and ten additional class members who submitted declarations in support of class certification; and the production of District data reflecting the course assignments and the number of Weekly Credit Hours associated with each such course assignment for all Class Members from the Spring 2019 term through the Fall 2024 term.

On July 31, 2023, Plaintiffs moved for certification of a class consisting of all part-time hourly instructional faculty members employed by the District from April 5, 2019, through the date of judgment. The Court (at that time, Hon. Stuart Rice) granted Plaintiffs' motion for class certification on May 6, 2024, certifying a class defined as "all persons employed by Long Beach Community College District as part-time hourly instructional faculty members at any time during the period from April 5, 2019 through final judgment." Judge Rice found that the Plaintiffs and Class Counsel met the applicable standards for adequacy of representation, and appointed the Plaintiffs as Class Representatives and appointed Altshuler Berzon LLP and Tuttle & McCloskey, PC, as Class Counsel. The Court also ordered notice of this action to be distributed to the class.

Notice was mailed in July 2024 to approximately 1,200 individuals. Only two class members opted out. By the time of parties' mediation in August 2025, the class size was estimated to be 1,456 individuals.

Following class certification, the parties agreed to proceed by means of cross motions for summary judgment or summary adjudication. On February 19, 2025, the Court issued an order determining that Class Members were not subject to the professional exemption from minimum wages under Industrial Welfare Commission Wage Order No. 4 because they did not satisfy the exemption's compensation test. The Court ruled that the compensation test, which provides that an employee can be treated as exempt only if the employee earns the equivalent of two times the minimum wage for a full time employee (IWC Wage Order No. 4, §1.A.3(d)), may not be pro-rated for part-time workers. The Court then granted Plaintiffs' motion for summary adjudication of the declaratory relief claim, and granted the District's motion for summary adjudication of the PAGA claim. The Court stayed the effect of its ruling on the declaratory relief claim pending entry of final judgment.

The

Court's February 19, 2025, ruling on Plaintiffs' declaratory relief claim established that the District's compensation structure violated California minimum wage law. Accordingly, the only issue remaining to be tried was the amount of minimum wage damages owed to the Class. At the time of mediation, no trial date had been set on Plaintiffs' minimum wage claim.

On

August 25, 2025, the Parties participated in an all-day mediation presided over by mediator Jason Marsili, which led to this Agreement to settle the Action. A fully executed long form Settlement Agreement was filed with the Court on February 11, 2026 attached to the Declaration of Eileen B. Goldsmith ("Goldsmith Decl.") as Exhibit 1.

Now before the Court is Plaintiff's motion for preliminary approval of the settlement.

SETTLEMENT CLASS
DEFINITION

· "Class" means all persons employed by Long Beach Community College District as part-time hourly instructional faculty members at any time during the period from April 5, 2019 through August 25, 2025, excluding any individuals who submitted timely notices of exclusion from the Class in response to the class notice distributed at the Court's direction in July 2024. (Settlement Agreement, ¶1.4.)

o "Class Period" means the period from April 5, 2019 through August 25, 2025. (¶1.11)

· Based on its records, District estimates that, as of the date of this Settlement Agreement, there are 1,456 Class Members. (¶8)

TERMS OF
SETTLEMENT AGREEMENT

The essential terms are as follows:

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The Gross Settlement Amount (“GSA”) is $18,000,000, non-reversionary. (¶3.1)

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The Net Settlement Amount (“Net”) ($16,454,000) is the GSA
minus the following:

o

Up to $1,440,000[1]
(8%) for attorney fees (¶3.1.2);

§

Fee Split:

o

Up to $50,000 for litigation costs (¶3.1.2);

o

Up to $40,000 for Service
Payments to the Named Plaintiffs ($20,000 each) (¶3.1.1); and

o

Up to $16,000 for settlement administration costs. (¶3.2.3)

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Defendant will pay any and all employer payroll taxes owed on the
Wage Portions of the Individual Class Payments separately from the GSA. (¶3.1)

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Funding of Settlement: District shall fully fund the Gross
Settlement Amount, and also fund the amounts necessary to fully pay District’s
share of payroll taxes on the Wage Portions of Individual Class Payments by
transmitting the funds to the Administrator no later than 14 days after the
Effective Date. (¶4.2)

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Disbursement of GSA: Within 14 days after District funds the Gross
Settlement Amount, or 14 days after the Parties notify the Administrator
regarding the opinion of CalSTRS as set forth in paragraph 4.3.5, whichever is
later, the Administrator shall mail checks for all Individual Class Payments,

the Administration Expenses Payment, the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, and the Class Representative Service Payments. Disbursement of the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment and the Class Representative Service Payments shall not precede disbursement of Individual Class Payments. (¶4.3)

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There is no claim form requirement. (¶3.1)

· Individual
Settlement Shares: An Individual Class Payment calculated in accordance with the plan of distribution set forth in this paragraph: (¶3.1.4)

o Plan
of Distribution: Each Weekly Credit Hour shall be assigned a point value as set forth in paragraph 3.1.4.2. The Administrator shall determine each Class Member’s total number of points based on the Class Member’s Weekly Credit Hours as set forth in the Class Data. The dollar value of 1 point shall be determined by dividing the Net Settlement Amount by the total number of points for all Class Members. Each Class Member’s Individual Class Payment shall be determined by multiplying the Class Member’s total points by the dollar value of 1 point. (¶3.1.4.1) Non-Participating Class Members will not receive any Individual Class Payments. The Administrator will retain amounts equal to their Individual Class Payments in the Net Settlement Amount for distribution to Participating Class Members on a pro rata basis. (¶3.1.4.4)

o Point
Values: Each Weekly Credit Hour shall be assigned a point value as follows: (¶3.1.4.2)

Term

Point value of 1 Weekly Credit Hour

Spring 2019

.37

Summer/Fall 2019

.75

Winter/Spring/Summer/Fall 2020

.81

Winter/Spring/Summer/Fall 2021

.88

Winter/Spring/Summer/Fall 2022

.94

Winter/Spring/Summer/Fall 2023

.97

Winter/Spring/Summer/Fall 2024

1.0

Winter/Spring/Summer 2025

1.03

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Tax Allocation: 50% as wages; 50% as interest and penalties. (¶3.1.4.3)

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“Response
Deadline” means 45 days after the Administrator mails Notice to Class Members, and shall be the last date on which Class Members may: (a) fax, email, or mail Requests for Exclusion from the Settlement, or (b) fax, email, or mail his, her, or their Objection to the Settlement. Class Members to whom Notices are resent after having been returned undeliverable to the Administrator shall have an additional 14 calendar days beyond the Response Deadline has expired. (¶1.33) The same deadlines apply to Challenges to Calculation of Weekly Credit Hours. (¶7.6)

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Why is it proper for Class members to
have a second, settlement-stage opt-out opportunity?

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Uncashed Settlement Checks: The Administrator will cancel all checks not cashed by the void date (not less than one hundred eighty (180) calendar days after the date of mailing). (¶4.3.1) For any Class Member whose Individual Class Payment check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to the California Controller's Unclaimed Property Fund in the name of the Class Member thereby leaving no "unpaid residue" subject to the requirements of Code of Civil Procedure section 384, subdivision (b). (¶4.3.3)

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The Parties agree that as a compromise or settlement of disputed claims, the Individual Class Payments are not creditable compensation. (Educ. Code §§ 22119.2(d)(8), 22119.3(c)(8)). For the avoidance of doubt and to minimize any risk of demands for additional contributions or penalties, the District shall promptly seek an opinion from CalSTRS regarding whether any amount of the Individual Class Payments is creditable compensation, and shall include Class Counsel on such communications with CalSTRS. If CalSTRS determines that any amount of the Individual Class Payments is creditable compensation, the Administrator shall deduct the employer's and employee's shares of the required contribution on such creditable compensation from the Wage Portion of the Individual Class Payments of those Class Members whom the Class Data reflects were enrolled in CalSTRS in connection with their District employment, and shall transmit those amounts to CalSTRS. Following the distribution of the Net Settlement Fund in accordance with this paragraph, the District shall be solely responsible for additional employer contributions or penalties ordered by CalSTRS or any other retirement fund, and Class Members shall be solely responsible for any additional employee contributions or penalties ordered by CalSTRS or any other retirement fund. (¶4.3.5)

o

On March 3, 2026, the CalSTRS Advisory Letter Manager, Ms. Kesner, confirmed that, in CalSTRS's view, the settlement agreement is not a publicly available written contractual agreement and that the settlement payments were being made pursuant to the settlement agreement and not the Collective

Bargaining Agreement between the District and the Certificated Hourly Instructors (“CHI”). (See Exhibit 3, p.1.) (Declaration of Adam P. Thursby (“Thursby Decl.”), ¶9 and Exhibit 3 thereto.) If payments are not made pursuant to a publicly available written salary agreement, they are, by definition, not creditable compensation. (Educ. Code, §§ 22119.2(a)(1) and 22119.3(b).) CalSTRS is only owed contributions based on an employee’s creditable compensation. (Educ. Code, §§ 22950, 22950.5, 22951, 22901.7). (Id. at ¶10.)

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The settlement administrator will be Simpluris, Inc. (¶1.2)

Participating class members and the named Plaintiff will release certain claims against Defendants. (See further discussion below)

ANALYSIS
OF SETTLEMENT AGREEMENT

A.
Does a presumption of
fairness exist?

1.
Was the settlement reached through arm’s-length bargaining? Yes. On August 25, 2025, the Parties participated in an all-day mediation presided over by mediator Jason Marsili, which led to this Agreement to settle the Action. (Goldsmith Decl., ¶14.)

2.
Were investigation and discovery sufficient to allow counsel and the court to act intelligently? Yes. Counsel represses that the parties engaged in investigation and discovery, which included written discovery by means of document requests and interrogatories; the depositions of six persons most qualified designated by the District, the named plaintiffs, and ten additional class members who submitted declarations in support of class certification; and the production of District data reflecting the course assignments and the number of Weekly Credit Hours associated with each such course assignment for all Class Members from the Spring 2019 term through the Fall 2024 term. (Id. at ¶¶8, 14.)

3.

Is counsel experienced in similar litigation? Yes. Class Counsel is experienced in class action litigation, including wage and hour class action cases. (Id. at ¶¶4-5; Declaration of Joshua F. Richtel (“Richtel Decl.”), ¶¶3-6, 11.)

4. What percentage of the class has objected? This cannot be determined until the fairness hearing. (See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2014) ¶ 14:139.18, [“Should the court receive objections to the proposed settlement, it will consider and either sustain or overrule them at the fairness hearing.”].)

CONCLUSION: The settlement is entitled to a presumption of fairness.

B. Is the settlement fair, adequate, and reasonable?

1. Strength of Plaintiff’s case. “The most important factor is the strength of the case for plaintiffs on the merits, balanced against the amount offered in settlement.” (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 130.)

Plaintiff’s Complaint alleged causes of action against the District for declaratory relief, violations of California minimum wage law, and penalties under the Labor Code Private Attorneys General Act. (Settlement Agreement, ¶2.1.)

At the time of settlement, (after motions for class certification and summary judgment/summary adjudication), the only remaining issue in the Superior Court litigation was a trial on Plaintiffs’ minimum wage claims. (Goldsmith Decl., ¶29.) Although the Court had ruled on the declaratory relief claim that the District’s compensation structure for Class Members violated California minimum wage law, placing Plaintiffs in a strong position heading into trial, many hurdles remained to obtaining minimum wage damages for the class. (Ibid.) First, the parties significantly differed in their estimates of potential classwide damages and their calculation methodologies; second, the parties had not negotiated a trial plan and the Court had not yet approved one; third, there are always risks in going to trial, including with respect to maintaining class certification and the amount of any damages award. (Ibid.)

Plaintiffs
estimated the classwide potential backpay recovery at $37 million, plus another
$37 million in liquidated damages. (Id. at ¶32.)

2. Risk,
expense, complexity and likely duration of further litigation. Given the nature of the class claims, the
case is likely to be expensive and lengthy to try. Procedural hurdles (e.g., motion practice and
appeals) are also likely to prolong the litigation as well as any recovery by
the class members.

3. Risk of maintaining class action status through trial. Even if a class is certified, there is always
a risk of decertification. (See Weinstat v. Dentsply Intern., Inc. (2010) 180 Cal.App.4th 1213, 1226 [“Our Supreme
Court has recognized that trial courts should
retain some flexibility in conducting class actions, which means, under suitable circumstances, entertaining
successive motions on certification if the court subsequently
discovers that the propriety of a class action is not appropriate.”].)

4. Amount offered in
settlement. Plaintiff’s counsel
obtained a Gross Settlement Amount of $18,000,000, which is approximately 25% to
48% of the estimated recovery, which is within the ballpark of reasonableness.

The $18,000,000 settlement amount, after reduction by the
requested deductions, leaves $16,454,000 to be divided among approximately 1,456
employees. The resulting payments will average $11,300.82. ($16,454,000/1,456= $11,300.82)

5. Extent of discovery
completed and stage of the proceedings.
As indicated above, at the time of the settlement, Class Counsel had
conducted sufficient discovery.

6. Experience and views
of counsel. The settlement was
negotiated and endorsed by Class Counsel who, as indicated above, is
experienced in class action litigation, including wage and hour class
actions.

7. Presence of a
governmental participant. This

factor is not applicable here.

8. Reaction of the class members to the proposed settlement. The class members' reactions will not be known until they receive notice and are afforded an opportunity to object, opt-out and/or submit claim forms. This factor becomes relevant during the final fairness hearing.

CONCLUSION: The settlement can be preliminarily deemed "fair, adequate, and reasonable."

C. Scope of the release

Effective on the date when District fully funds the entire Gross Settlement Amount and funds all employer payroll taxes owed on the Wage Portion of the Individual Class Payments, Plaintiff, Class Members and Class Counsel will release claims against all Released Parties as follows: (¶5)

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All Participating Class Members, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors and assigns, release Released Parties from (i) all claims that were alleged, or reasonably could have been alleged, based on the Class Period facts stated in the Operative Complaint, including claims for unpaid minimum wages, liquidated damages and penalties thereon, and unpaid benefits contributions thereon. Participating Class Members do not release any other claims, including claims for wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation or claims based on facts occurring outside the Class Period. (¶5.2)

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The named Plaintiffs will also provide general releases and 1542 waivers. (¶5.1.)

D. May conditional class certification be granted?

On May 6, 2024, the Court (at that time, Hon. Stuart Rice) granted Plaintiffs' motion for class certification, certifying a class defined as “all persons employed by Long Beach Community College District as part-time hourly instructional faculty members at any time during the period from April 5, 2019 through final judgment.” Judge Rice found that the Plaintiffs and Class Counsel met the applicable standards for adequacy of representation, and appointed the Plaintiffs as Class Representatives and appointed Altshuler Berzon LLP and Tuttle & McCloskey, PC, as Class Counsel. The Court also ordered notice of this action to be distributed to the class. (Goldsmith Decl., ¶9, and Exhibit 5 thereto.)

Notice
was mailed in July 2024 to approximately 1,200 individuals. Only two class members opted out. By the time of parties’ mediation in August 2025, the class size was estimated to be 1,456 individuals. (Id. at ¶10.)

E. Is the notice proper?

a.
Content of class notice. The Amended Proposed Class Action Settlement Notice (“Amended Notice”) was filed with the Court on June 9, 2026, attached to the Stipulation Regarding Amended Proposed Class Action Settlement Notice as Exhibit 1. Its content appears to be acceptable. It includes information such as: a summary of the litigation; the nature of the settlement; the terms of the settlement agreement; attorney fees and costs; enhancement awards; the procedures and deadlines for participating in, opting out of, or objecting to, the settlement; the consequences of participating in, opting out of, or objecting to, the settlement; and the date, time, and place of the final approval hearing.

b.
Method of class notice. Notice will be via direct mail. No later than 14 days after the Court grants Preliminary Approval of the Settlement, District will simultaneously deliver the Class Data to the Administrator and Class Counsel, in the form of a Microsoft Excel spreadsheet. (¶4.1) Using best efforts to perform as soon as possible, and in no event later than 14 days after receiving the Class Data, the Administrator will send to all Class Members identified in the Class Data, via first-class USPS mail, the Class Notice. Before mailing Class Notices, the Settlement Administrator shall update Class Member addresses using the National Change of Address database. (¶7.4.2) Not later than three (3) business days after the Administrator’s receipt of any Class Notice returned by the USPS as undelivered, the Administrator shall re mail the Class Notice using any

forwarding address provided by the USPS. If the USPS does not provide a forwarding address, the Administrator shall conduct a Class Member Address Search, and re-mail the Class Notice to the most current address obtained. The Administrator has no obligation to make further attempts to locate or send Class Notice to Class Members whose Class Notice is returned by the USPS a second time. (¶7.4.3) If the Administrator, District or Class Counsel is contacted by or otherwise discovers any persons who believe they should have been included in the Class Data and should have received Class Notice, the Parties will expeditiously meet and confer in person or by telephone, and in good faith, in an effort to agree on whether to include them as Class Members. If the Parties agree, such persons will be Class Members entitled to the same rights as other Class Members, and the Administrator will send, via email or overnight delivery, a Class Notice requiring them to exercise options under this Agreement not later than 14 days after receipt of Class Notice, or the deadline dates in the Class Notice, whichever are later. (¶7.4.5) Notice of Final Judgment will be posted on the Settlement Administrator's website. (¶7.8.1)

c.

Cost of class notice. As indicated above, settlement administration costs are estimated to be $16,000. Prior to the time of the final fairness hearing, the claims administrator must submit a declaration attesting to the total costs incurred and anticipated to be incurred to finalize the settlement for approval by the Court.

F.

Attorney fees and costs

California Rule of Court, rule 3.769(b) states: "Any agreement, express or implied, that has been entered into with respect to the payment of attorney fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action."

Ultimately, the award of attorney fees is made by the court at the fairness hearing, using the lodestar method with a multiplier, if appropriate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-1096; Ramos v. Countrywide Home Loans, Inc. (2000) 82 Cal.App.4th 615, 625-626; Ketchum III v. Moses (2000) 24 Cal.4th 1122, 1132-1136.) Despite any agreement by the parties to the contrary, "the court ha[s] an independent right and responsibility to review the attorney fee provision of the settlement agreement and award only so much as it determined reasonable.” (Garabedian v. Los Angeles Cellular Telephone Company (2004) 118 Cal.App.4th 123, 128.)

The question of whether Class Counsel is entitled to $1,440,000 (8%) in attorney fees and up to $50,000 in costs will be addressed at the final fairness hearing when class counsel brings a noticed motion for attorney fees.
Class counsel must provide the court with billing information so that it can properly apply the lodestar method and must indicate what multiplier (if applicable) is being sought as to each counsel.

Class Counsel should also be prepared to justify the costs sought by detailing how they were incurred.

G. Incentive Awards to Class Representatives

The named Plaintiffs will request a service award of up to $20,000 each for a total of $40,000. In connection with the final fairness hearing, each named Plaintiff must submit a declaration attesting to why he should be entitled to an enhancement award in the proposed amount. The named Plaintiff must explain why he “should be compensated for the expense or risk she has incurred in conferring a benefit on other members of the class.” (Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 806.) Trial courts should not sanction enhancement awards of thousands of dollars with “nothing more than pro forma claims as to ‘countless’ hours expended, ‘potential stigma’ and ‘potential risk.’ Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred by the named plaintiff, is required in order for the trial court to conclude that an enhancement was ‘necessary to induce [the named plaintiff] to participate in the suit . . . .’” (Id. at 806-807, italics and ellipsis in original.)
The Court will decide the issue of the enhancement awards at the time of final approval.

[1] Class Counsel shall receive a Class Counsel Fees Payment of up to 8% of the Gross Settlement Amount, or Class Counsel’s attorneys’ fees lodestar through Final Approval, whichever is less. (¶3.1.2)

The Class Counsel Fees Payment is therefore capped at $1,440,000.00, to be distributed pro rata to the Class Counsel law firms based on lodestar hours incurred in the prosecution of the Action. (Ibid.)